

26SMCV01748 26SMCV01748

County: los-angeles

Division: Civil Law and Motion

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This is an application to shorten time in a motion to allow limited discovery to respond to a Special Motion to Strike. The underlying case is one in which plaintiff sues former counsel for wrongly asserting that plaintiff owes them money even though plaintiff had allegedly paid defendants in full, and for wrongfully putting a lien on the recovery of the judgment in the underlying case. Defendant relies on a declaration that plaintiff filed in the underlying case in which plaintiff allegedly acknowledged that he owed defendant money in the context of a fee motion brought in that case. Plaintiff here seeks the accounting records upon which defendants rely in ascertaining that money is in fact owed.

The real issue the court has is this. Assuming that the motion meets the first prong of the SMS analysis (and the discovery does not go to that, really), why is this necessary? In other words, the gist of plaintiff's case is that plaintiff and defendants entered into an oral agreement that plaintiff would pay defendants no more than \$25,000 to defend an appeal plus 30% of the amount of any judgment recovered through collection efforts. Prior to that, the court infers from the complaint that plaintiff had retained defendant on some kind of hourly basis through trial and had paid all of the bills in full. Plaintiff says that defendant acknowledged as much, and with regard to the fee motion in the trial court, said that plaintiff would not be charged for it and even that plaintiff would benefit from it because plaintiff had already paid defendant in full. That was (according to plaintiff) an oral agreement. Plaintiff says he paid the full \$25,000 for the appeal, but shortly thereafter, the underlying defendant abandoned the appeal. Defendant then allegedly refunded plaintiff \$5000 and allegedly said that plaintiff was paid up in full. Defendant then left the

case, having collected nothing.

Plaintiff then retained current counsel, who has been more successful in tracking down the underlying defendant's assets. That led the current defendants to file a lien demanding a part of whatever plaintiff collects. Plaintiff sues, asserting various torts and breaches. Defendants responded by filing two SMS motions (one for each individual defendant).

The court has this question: assuming plaintiff will declare all of the things asserted in the complaint were in fact said to him, why would that not be sufficient? That is somewhat an inverted question to the defense. The issue is that if the court takes it as true that there was an oral contract as plaintiff describes, and if the statements plaintiff claims were made were in fact made, how is it that plaintiff will not defeat the motions? Based on the answer that defendants give, the court will ask plaintiff whether the information now sought goes to those arguments.

If there is enough to cause the court to be in doubt, then court will likely GRANT the ex parte and shorten time on the discovery motions (the court will not decide the motions today). That will likely require continuing the SMS. The court is aware that defendants' position is that the declaration regarding the fee motion trumps all. If that is defendants' position, then the court will ask the plaintiff how—if that is true as a matter of estoppel—this goes to anything that will be at issue in the SMS.